

FEDERAL MARITIME COMMISSION

GENERAL MOTORS LLC

Complainant,

v.

NIPPON YUSEN KABUSHIKI
KAISA, WALLENIUS
WILHELMSSEN LOGISTICS AS,
AND EUKOR CAR CARRIERS INC.

Respondents.

Docket No. 15-08

Served: October 13, 2016

BY THE COMMISSION: Mario CORDERO *Chairman*;
Rebecca F. DYE, Michael A. KHOURI, William P. DOYLE,
Daniel B. MAFFEI, *Commissioners*.

Order Affirming Initial Decision and Granting Motion to Seal

On July 29, 2016, the Administrative Law Judge (ALJ) issued an Initial Decision approving a settlement agreement filed by Complainant General Motors LLC (GM) and Respondents Wallenius Wilhelmsen Logistics AS (WWL) and Eukor Car Carriers, Inc. (Eukor). The ALJ also dismissed WWL and Eukor with prejudice and granted the settling parties' joint motion to seal the settlement agreement.

On August 26, 2016, the Commission determined to review the Initial Decision and ordered the settling parties to clarify whether the confidential settlement agreement includes Eukor. The settling parties submitted the requested clarification on September 1, 2016. In light of that submission, the Commission **AFFIRMS** the ALJ's Initial Decision granting the motion to approve the settlement agreement, dismissing WWL and Eukor with prejudice, and granting the motion to seal the settlement agreement. The Commission also **GRANTS** the settling parties' joint motion to seal their September 1, 2016, joint submission, as it quotes from the settlement agreement previously deemed confidential.

By the Commission.

Rachel Dickon
Assistant Secretary